



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 18, 2024

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202305523 (Incident Date: June 18, 2023) regarding Lieutenant Hugo Batista,
Tax No. 952449 (PODS Case No. C-032164)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation regarding the stop against Lieutenant Hugo Batista.

In this matter, Lieutenant Hugo Batista (Sergeant at the time) responded to a 911 call regarding a man with a firearm. Specifically, the caller stated that there is a man with a gun on him at the location. She further gave a detailed description of the suspect, including that the individual was wearing grey sweatpants with a red heart logo, white t-shirt, and white sneakers. She also gave the individual's race, height, age and that he was coming out of his blue jeep at the moment she was speaking to the 911 operator. She further described the firearm as being black and that he just let off shots and went back inside his car momentarily and that he was now coming out of it. She stated during this first call that she could not see the full vehicle license plate from her vantage point at that moment, but it did say "commercial" and started with a "7" and a "3". The ICAD for this call included that there was a perpetrator with a firearm coming out of a blue Jeep SUV with a black firearm in hand as well as the description that the individual was skinny, wearing grey pants, white shirt, with a red heart logo on clothing. Lieutenant Batista responded based on this first call and when he arrived, observed an individual matching that detailed description, however, he did not stop him until the second anonymous 911 call came in. That second call now indicated even more information including

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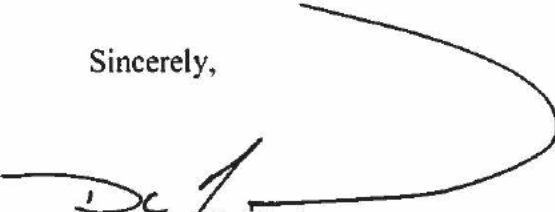
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the exact full plate number of the vehicle and the officer observed the subject to be inside of said vehicle. The door was open at this moment so the officer had an unobstructed view. The second call also elaborated in eyewitness detail how the subject matching the description shot the gun a few times. The caller also indicated that she observed officers speak to the subject and the gun was now in his pocket, further enhancing her eyewitness reliability.

In order for there to be reasonable suspicion to form the basis for a stop of an individual based on a 911 call, the information must establish that the 911 caller is reliable and has a sufficient basis of knowledge for the information provided to police.¹ In this case, the totality of the information that the caller provided indicated that they were an eyewitness to criminality and therefore, were a reliable source of information. Based on New York cases of authority, this information, even if the caller's name is unknown, establishes an eyewitness basis for a level 3 stop, including a basis to frisk this person since this case involved a violent crime.² This fact pattern is highly distinguishable from Fla v. JL³ and is more analogous to the facts in People v. Herold.⁴ Just as in Herold, the information here supports the conclusion that the caller was in close proximity, and had intimate knowledge of an ongoing incident supporting that they were an eyewitness. These facts establish that the report of the crime was based on the caller's own personal observations. Lieutenant Batista was also following the court approved Investigative Encounter's trainings surrounding Stop Question and Frisk as approved by the Federal Monitor.⁵

Therefore, based on the above, and the totality of the circumstances, the Police Commissioner directs that no disciplinary action be imposed for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters). In addition Lieutenant Batista will receive a Schedule "A" Command Discipline for violating Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act).

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹ See People v. Warren, 124 Ad3d 699 (2nd Dept. 2015).

² See People v. Argyris, 24 N.Y. 3d 1138 (2014); Narvarete v. California, 134 S Ct 1683 (2014); United States v. Ogden, 2016 U.S. Dist. LEXIS 128329 (Sept. 12, 2016).

³ 529 U.S. 266 (2000); See also People v. Moore, 6 N.Y. 3d 496 (2006).

⁴ See People v. Herold 282 A.D.2d 1 (2001).

⁵ See Investigative Encounters In-Service Training Instructor's Guide Part IIA at page 34 (indicating how anonymous caller who eyewitnesses criminality can elevate into Level 3 Reasonable Suspicion).